

Sri Sonpal Singh v. Birpal Sharma & Others

Allahabad High Court · Single Judge · 12 September 2018 (Article 227 order-sheet 12.7.2017 to 12.9.2018; petition disposed of, petitioner relegated to the trial court and the District Magistrate under the Works of Licensees Rules, 2006) · Matters Under Article 227 No. 4140 of 2017 (arising from Original Suit No. 583 of 2014 and Misc. Civil Appeal No. 80 of 2016) · **Article 227 petition disposed of. The Single Judge, having examined the record, found no infirmity or illegality in the orders of the Civil Judge (SD), Aligarh (8.8.2016 in Original Suit No. 583 of 2014) and the District Judge, Aligarh (21.5.2017 in Misc. Civil Appeal No. 80 of 2016) refusing the plaintiff-petitioner's injunction against the laying of a high-tension line over his plot, and declined to interfere under Article 227. Accepting that the relief sought could be looked into and remedied by the Collector/District Magistrate under Rule 3(b) of the Works of Licensees Rules, 2006 - and that no relief could be extended under Article 227 - the Court left the petitioner at liberty to move an appropriate application before the trial court (the petitioner having undertaken to move, within ten days, an application not to press the suit) as well as before the District Magistrate, to be considered in accordance with law expeditiously. The interim restraint (order dated 12.7.2017) on laying the line thus stood dissolved.**

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HEADNOTE

Sonpal Singh, plaintiff in Original Suit No. 583 of 2014, invoked Article 227 to challenge the concurrent refusal of a temporary injunction by the Civil Judge (SD), Aligarh (8 August 2016) and the District Judge, Aligarh (21 May 2017), by which he had sought to restrain the erection of a high-tension electricity line and towers over his plot; the beneficiary respondents had deposited Rs.1,25,000 towards installation of the pole and supply of power and claimed the right under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 to installation and supply. The contesting respondents raised a preliminary objection that a suit for injunction was not maintainable, relying on a Division Bench decision (Writ Petition No. 33094 of 2016) which had followed *Deva Raj v. U.P. State Electricity Board*, AIR 1977 Allahabad 452 - where Section 51 of the Indian Electricity Act, 1910 (similar to Section 164 of the Electricity Act, 2003), read with the State notification under Section 51 and Section 10 of the Telegraph Act, was held to empower installation of towers on privately-owned land - and *E. Venkatesan v. Chairman, Tamil Nadu Electricity Board*, AIR 1977 Madras 64, and on *Pooran Singh v. State of U.P.* (Writ-C No. 29995 of 2016), holding that construction of transmission lines cannot be stopped for want of payment of compensation, the remedy being a direction to the competent authority to determine and pay compensation to the tenure holders. Examining the record, the Single Judge found no infirmity or illegality in the impugned orders warranting interference under Article 227, and accepted that the relief could be looked into and remedied by the Collector/District Magistrate under Rule 3(b) of the Works of Licensees Rules, 2006, so that no relief could be extended under Article 227. The petition was disposed of leaving the petitioner at liberty to move the trial court (he undertook to apply within ten days not to press the suit) and to approach the District Magistrate under the Works of Licensees Rules, 2006, the authorities to decide in accordance with law; the interim restraint on laying the line stood dissolved. The ruling confirms that a landowner objecting to a transmission line over his land is relegated to the compensation mechanism before the District Magistrate rather than an injunction, and that the line cannot be halted for want of compensation.

FACTUAL SUMMARY

The petitioner, Sonpal Singh, was the plaintiff in Original Suit No. 583 of 2014 (*Sonpal Singh v. Birpal Sharma & Ors.*) before the Civil Judge (Senior Division), Aligarh, in which he sought to restrain the laying of a high-tension electricity line and the erection of a pole/towers over his plot. His injunction application was rejected by the trial court on 8 August 2016, and that rejection was affirmed by the District Judge, Aligarh, on 21 May 2017 in Misc. Civil Appeal No. 80 of 2016, the courts holding on prima facie case, balance of convenience and irreparable injury that no irreparable loss would be caused if the line passed over his holding. The private (beneficiary) respondents had deposited Rs.1,25,000 towards installation of the pole and supply of power on 12 March 2014, and asserted a right under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 to installation of the pole and smooth supply. Sonpal Singh invoked the supervisory jurisdiction under Article 227 (Matters Under Article 227 No. 4140 of 2017), impleading the Chief Executive Engineer, Aligarh Division Electricity Distribution Division I (respondent no. 3), among others. On 12 July 2017 the Court entertained the petition and restrained respondent no. 3 from laying the high-tension line over the plot; that interim order was extended from time to time through 2017-2018 amid repeated adjournments. The contesting respondents raised a preliminary objection to maintainability, relying on a Division Bench decision (Writ Petition No. 33094 of 2016) that had followed *Deva Raj v. U.P. State Electricity Board*, AIR 1977 Allahabad 452, *E. Venkatesan v. Chairman, Tamil Nadu Electricity Board*, AIR 1977 Madras 64, and *Pooran Singh*

v. State of U.P. (Writ-C No. 29995 of 2016). By final order dated 12 September 2018 the Single Judge (Mahesh Chandra Tripathi, J.) found no infirmity in the impugned orders warranting Article 227 interference and, accepting that the grievance could be remedied by the Collector/District Magistrate under Rule 3(b) of the Works of Licensees Rules, 2006, disposed of the petition, leaving the petitioner at liberty to move the trial court (to apply within ten days not to press the suit) and the District Magistrate for adequate relief.

REUSABLE CONSTRUCTIONS

1. A landowner objecting to the laying of a transmission/supply line or the erection of towers over his private land is not entitled to a civil injunction to stop the work; his remedy is to have the objection looked into and remedied by the Collector/District Magistrate under Rule 3(b) of the Works of Licensees Rules, 2006, and the construction of transmission power service lines cannot be stopped for want of payment of compensation. **order of 12.9.2018**
2. The power to install towers/lines over privately-owned land is traceable to Section 164 of the Electricity Act, 2003 (and its predecessor, Section 51 of the Indian Electricity Act, 1910, read with Section 10 of the Telegraph Act and the State notification thereunder); the appropriate course is a direction to the competent authority to determine and pay compensation to the tenure holders, not an injunction. **order of 12.9.2018**
3. Where the courts below have concurrently refused a temporary injunction on a proper appreciation of prima facie case, balance of convenience and irreparable injury, and an efficacious statutory remedy (the Works of Licensees Rules, 2006) is available, the High Court will not interfere under Article 227. **order of 12.9.2018**

HOLDING-UNITS

INTERPLAY · UP-2005::4.5(d)

RATIO

Landowner objecting to a high-tension line over his plot is relegated to the District Magistrate under the Works of Licensees Rules, 2006; no injunction and no Article 227 interference with concurrent refusals

QUESTION

Is a landowner objecting to the laying of a high-tension line/towers over his plot entitled to an injunction or to interference under Article 227, or is his remedy before the District Magistrate under the Works of Licensees Rules, 2006?

HOLDING

His remedy lies before the District Magistrate. Having examined the record, the Single Judge found no infirmity or illegality in the concurrent orders of the trial court (8.8.2016) and the appellate court (21.5.2017) refusing the injunction, and declined to interfere under Article 227. Accepting the submission that the relief sought could be looked into, examined and remedied by the Collector/District Magistrate under Rule 3(b) of the Works of Licensees Rules, 2006, the Court held that no relief could be extended under Article 227, and disposed of the petition leaving the petitioner at liberty to move the trial court (to apply within ten days for not pressing the suit) and to approach the District Magistrate, the authorities to decide in accordance with law expeditiously. **order of 12.9.2018**

EVIDENCE “so far as relief as has been asked for can very well be looked into, examined and remedied by the Collector/ District Magistrate under Rule 3 (b) of Works of Licensees Rules, 2006 and as such no relief can be extended under Art.227 of the Constitution of India” **order of 12.9.2018**

EVIDENCE “The Court has proceeded to examine the record in question and does not find any infirmity or illegality in the orders impugned so as to make interference under Art.227 of the Constitution of India” **order of 12.9.2018**

EVIDENCE “the petitioner would be at liberty to move appropriate application before the trial court as well as to the District Magistrate and the same would be considered by the authorities concerned in accordance with law expeditiously” **order of 12.9.2018**

FLAG Order-sheet series (2017-2018), Article 227, single judge on final disposal; pins are order dates (pin_basis=date). Provision keyed to the UP-2005::4.5(d) landowner-objection spine (read with the Works of Licensees Rules, 2006), consistent with SCJ-104/SCJ-582/SCJ-120; the judgment itself discusses Section 164 of the Electricity Act, 2003 and Rule 3(b) of the Works of Licensees Rules, 2006.

HOLDING-UNIT · EA2003::164

RATIO

Power to erect towers/lines over privately-owned land, and that construction of transmission lines cannot be stopped for want of

QUESTION

Does the beneficiary/licensee have the power to install towers/lines over privately-owned land such that the construction cannot be halted by injunction for want of compensation?

HOLDING

Yes. Adopting the Division Bench view (Writ Petition No. 33094 of 2016) which followed *Deva Raj v. U.P. State Electricity Board* (AIR 1977 Allahabad 452) - examining Section 51 of the Indian Electricity Act, 1910, similar to Section 164 of the Electricity Act, 2003, read with the State notification under Section 51 and Section 10 of the Telegraph Act - the Court proceeded on the footing that the respondents have the power to install the towers on land owned by a person, and that the construction of transmission power service lines cannot be stopped for want of payment of compensation; the appropriate course is a direction to the competent authority to determine the compensation in accordance with law and pay it to the tenure holders over whose land the towers are erected. **order of 12.9.2018**

EVIDENCE *“the Division Bench of this Court had examined the provisions of Section 51 of the Indian Electricity Act, 1910, which is similar to the provisions of Section 164 of the Electricity Act, 2003” order of 12.9.2018*

EVIDENCE *“the respondents have the power to install the towers on the land owned by a person” order of 12.9.2018*

EVIDENCE *“the construction of transmission power service lines cannot be stopped for want of payment of compensation” order of 12.9.2018*

EVIDENCE *“an appropriate direction can be issued to the competent authority for determining the compensation in accordance with law and pay the same to the tenure holders over whose land the towers are being erected” order of 12.9.2018*

FLAG The Section 164/Section 51 discussion was advanced by the contesting respondents as a maintainability objection (via the Division Bench in Writ Petition No. 33094 of 2016 and *Deva Raj*); the Court adopted it in declining to interfere. New spine node EA2003::164 (no prior sibling under this section).

PRINCIPLE TAGS

landowner-objection-to-line-over-land-remedy-before-district-magistrate A landowner objecting to a high-tension line/towers over his private land is relegated to the Collector/District Magistrate under Rule 3(b) of the Works of Licensees Rules, 2006 (read with Clause 4.5(d) of the U.P. Electricity Supply Code, 2005), not to a civil injunction or Article 227 relief. **order of 12.9.2018**

transmission-line-cannot-be-stopped-for-want-of-compensation Construction of transmission power service lines cannot be stopped for want of payment of compensation; the remedy is a direction to the competent authority to determine and pay compensation to the tenure holders over whose land the towers are erected. **order of 12.9.2018**

no-article-227-interference-with-concurrent-injunction-refusals Where the trial and appellate courts have concurrently refused a temporary injunction on a proper appreciation of prima facie case, balance of convenience and irreparable injury, and a statutory remedy exists, the High Court will not interfere under Article 227. **order of 12.9.2018**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE QUANTUM OF COMPENSATION PAYABLE TO THE PETITIONER (TENURE HOLDER) FOR THE TOWERS/LINE OVER HIS LAND.

Left to the competent authority (Collector/District Magistrate) to determine under Rule 3(b) of the Works of Licensees Rules, 2006; the Court did not determine it. **order of 12.9.2018**

RELATED CASES — SEE ALSO

SCJ-104 — *Priy Shankar Pandey v. State of U.P.* - landowner's objection under Clause 4.5(d) to a supply line/pole over private land resolved by the District Magistrate under Clause 3 of the Works of Licensees Rules, 2006; closest spine sibling.

SCJ-582 — *Shiv Shankar Pandey v. State of U.P.* - Clause 4.5(d) landowner objection to a supply line over private land, remedy before the District Magistrate under the Works of Licensees Rules, 2006.

SCJ-120 — *Shivmahraj v. State of U.P.* - companion Clause 4.5(d) ruling on a landowner's objection to a new pole/line, resolved under the Works of Licensees Rules, 2006.

SCJ-282 — *Kumar Ajay Singh v. State of U.P.* - Clause 4.5(d) landowner objection to a line over land; same Works-of-Licensees-Rules relegation family.

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Division Bench, Writ Petition No. 33094 of 2016 (Allahabad High Court)</i> Writ Petition No. 33094 of 2016 Allahabad High Court	A suit for injunction to restrain the laying of a transmission line/towers is not maintainable; the beneficiary has the power to install towers over private land and the remedy of the landowner is compensation.	Relied on by the contesting respondents as a preliminary objection to maintainability; the Court proceeded on its footing in declining interference. order of 12.9.2018	Respondent	Relied on
<i>Deva Raj v. U.P. State Electricity Board, Lucknow & Ors.</i> AIR 1977 Allahabad 452 Allahabad High Court	Under Section 51 of the Indian Electricity Act, 1910 (similar to Section 164 of the Electricity Act, 2003), read with the State notification under Section 51 and Section 10 of the Telegraph Act, the respondents have the power to install towers on land owned by a person.	Followed by the Division Bench relied on by the respondents; adopted by the Court in declining interference. order of 12.9.2018	Respondent	Relied on
<i>E. Venkatesan & Ors. v. Chairman, Tamil Nadu Electricity Board, Madras & Ors.</i> AIR 1977 Madras 64 Madras High Court	A similar view that the electricity authority has the power to install towers/lines over privately-owned land.	Referred to as taking a similar view to Deva Raj. order of 12.9.2018	Respondent	Referred
<i>Pooran Singh & Ors. v. State of U.P. & Ors.</i> Writ-C No. 29995 of 2016 Allahabad High Court	The construction of transmission power service lines cannot be stopped for want of payment of compensation; an appropriate direction can be issued to the competent authority for determining the compensation and paying it to the tenure holders over whose land the towers are erected.	Relied on by the Court for the proposition that the line cannot be halted for want of compensation. order of 12.9.2018	Respondent	Relied on